

Court No. - 21

Case :- WRIT - C No. - 6007 of 2024

Petitioner :- Sachin Tomar

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Brahma Kumar Tiwari

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Counsel for the respondent authority is granted time to verify whether any notice of provisional assessment was issued to the petitioner separately apart from the impugned one under OTS Scheme (Annexure No.1).

2. List as fresh on 13.03.2024.

Order Date :- 26.2.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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1. The instant petition has been filed challenging a notice issued by respondent-Electricity Department to the petitioner for one time settlement of the electricity dues on basis of an order of provisional assessment.
2. The case of the petitioner is that he had purchased the property by sale deed dated 22.11.2022. According to him, he is not liable for any amount in connection with alleged theft of electricity. It is submitted that the petitioner has filed objection before the Authorities and, thereafter, an order was passed by Executive Engineer on 29.03.2023 for holding enquiry. It is urged that the respondents are compelling the petitioner to pay the electricity dues on basis of order of provisional assessment as well as the impugned notice.
3. Learned counsel appearing on behalf of Electricity Department, on instructions, states that final assessment order has not yet been passed and, therefore, in case any objection is filed by the petitioner, it will be considered while passing the final order.
4. Since, the dispute raised by the petitioner is factual in nature and require appreciation of evidence, therefore, we are not inclined to examine the same in exercise of writ jurisdiction. We leave it open to the petitioner to file objection against the notice of provisional assessment, a copy whereof has been made available to him in Court, within two weeks from today and in which event, the same shall be decided by the concerned Executive Engineer strictly in accordance with the procedure stipulated in Clause 6.8 of the U.P. Electricity Supply Code, 2005. It is further provided that until final assessment order is passed, no coercive action shall be taken against the petitioner on basis of the impugned notice or the notice of provisional assessment.
5. The petition is **disposed of** accordingly.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.3.2024

Ankit.